

The Prevention of Corruption Act, Svt. 2006 [Jammu and Kashmir]

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[Prevention Of Corruption Act, 2006 \(1949 A.D.\)](#)

[\[Act No. 13 of 2006\]](#)

[\[25th Maghar, 2006\]](#)

[An Act for more effective prevention of bribery and corruption.](#)

[Whereas it is expedient to make more effective provisions for the prevention of bribery and corruption in the state.](#)

[Now, therefore, in exercise of the powers reserved under section 5 of the Jammu and Kashmir Constitution Act, 1996, read with the Proclamation issued by His Highness and published in the extraordinary issue of the Government Gazette dated 7th Har, 2006, Yuvraj Shree Karan Singh Ji Bahadur is pleased to enact as follows:?](#)

[1.](#)

[Short title, extent and commencement](#)

(1)

This Act may be called the Prevention of Corruption Act, 2006.

(2)

It extends to the whole of the Jammu and Kashmir State and it applies also to the State subjects and servants of the State wherever they may be.

(3)

It shall come into force from the date it is published in the Government Gazette.

2.

Interpretation

(1)

In this Act, unless the context otherwise requires:-

(a)

"Designated Authority" shall mean such officer of the Government not below the rank of Secretary to Government, as may be specified by the Government by notification in the Government Gazette;

(aa)

"Director" shall mean the Director of Vigilance appointed under Section 22 of the Jammu and Kashmir State Vigilance Commission Act, 2011.

(b)

"property" shall mean property and assets of every description, whether corporeal or incorporeal, moveable or immovable, tangible or intangible and deeds and instruments evidencing title to, or interest in, such property or assets and includes bank account and proceeds of such property and assets;

(c)

"Vigilance Organisation" shall mean the Vigilance Organisation established under sub-section (1) of section 10.

(2)

For the purpose of the of this Act the expression "public servant" means a public servant as defined in Section 21 of the State Ranbir Penal Code and shall include:?

(a)

a person who is or has been a member of either House of State Legislature or a member (including Minister of State) of the Council of Ministers;

(b)

every person who is or has been under the employment of Government whether on permanent, temporary or work-charge basis;

(c)

every officer, servant or member (by whatever name called) of a Corporation or of a corporate or other body which is established by or under an Act of the State Legislature or of Parliament in force in the state.

(3)

Words and expressions used herein and not defined but defined in the Jammu and Kashmir State Vigilance Commission Act, 2011, shall have, the meanings, respectively, assigned to them in that Act.

2A.

Omitted

3.

Certain offences to be cognizable

An offence punishable under section 5 of this Act or under section 161 or section 165 or section 165-A or section 167-A of the State Ranbir Penal Code, Samvat 1989 shall be deemed to be a cognizable offence for the purposes of the Code of Criminal Procedure, Samvat 1989 notwithstanding anything to the contrary contained therein:

Provided that no Police Officer below the rank of the Deputy Superintendent of Police shall investigate any such offence without the order of a Magistrate of the first class or make any arrest thereof without a warrant:

Provided further that if an officer of the Vigilance Organisation of and above the rank of a Sub- Inspector of Police is specially authorised in writing by an officer of the Vigilance Organisation not below the rank of an Assistant Superintendent of Police to investigate such offence, such officer may investigate the offence so specified in the order of authorisation. But such officer shall not be competent to arrest any person during such investigation, unless a Police

Officer not below the rank of a Deputy Superintendent of Police authorises such arrest under section 56 of the Code of Criminal Procedure, Samvat 1989.

4.
Presumption where public servant accepts gratification other than legal remuneration

(1)
Where in any trial of an offence punishable under Section 4-A or Section 4-E of this Act or an offence referred to in clause (a) or clause (b) of sub-section (1) of section 5 of this Act punishable under sub-section (2) thereof it is proved that an accused person has accepted or obtained, or has agreed to accept or attempted to obtain, for himself or for any other person, any gratification (other than legal remuneration) or any valuable thing from any person, it shall be presumed unless the contrary is proved that he accepted to obtain, that gratification or that valuable thing, as the case may be, as a motive or reward such as is mentioned in the said section 161, or, as the case may be, without consideration or for a consideration which he knows to be inadequate.

(2)
Where in any trial of an offence punishable under Section 4-F or 4-H of this Act, it is proved that any gratification (other than legal remuneration) or any valuable thing has been given or offered to be given or attempted to be given by an accused person, it shall be presumed, unless the contrary is proved, that he gave or offered to give or attempted to give that gratification or that valuable thing, as the case may be, as a motive or reward such as is mentioned in Section 4-A of this Act, Section 4-F or 4-H of this Act, or, as the case may be, without consideration or for a consideration which he knows to be inadequate.

(3)
Notwithstanding anything contained in sub-sections (1) and (2), the Court may decline to draw the presumption referred to in either of the said sub-sections, if the gratification or thing aforesaid is, in its opinion, so trivial that no inference of corruption may fairly be drawn.

4A.
Public servant taking gratification other than legal remuneration in respect of an official act

Whoever, being, or expecting to be a public servant, accepts or obtains or agrees to accept or attempts to obtain from any person, for himself or for any other person, any gratification whatever, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act or for showing or forbearing to show, in the exercise of his official functions, favour or disfavour to any person or for rendering or attempting to render any service or disservice to any person, with the Government or the State Legislature or with any local authority, Corporation or corporate body referred to in clause (c) of section 2, or with any public servant, shall be punishable with imprisonment which shall be not less than one year but which may, extend to five years and shall also be liable to fine.

Explanations: -

(a)
"Expecting to be a public servant" if a person not expecting to be in office obtains a gratification by deceiving others into a belief that he is about to be in office, and that he will then serve them, he may be guilty of cheating, but he is not guilty of the offence defined in this section.

(b)
"Gratification" the word "gratification" is not restricted to pecuniary gratifications or to gratifications estimable in money.

(c)
"Legal remuneration" the words "legal remuneration" are not restricted to remuneration which a public servant can lawfully demand, but include all remuneration which he is permitted by the Government or the organisation, which he serves, to accept.

(d)
"A motive or reward for doing" a person who receives a gratification as a motive or reward for doing what he does not intend or is not in a position to do, or has not done, comes within this expression.

(e)
Where a public servant induces a person erroneously to believe that his influence with the Government has obtained a title for that person and thus induces that person to give the public servant, money or any other gratification as a reward for this service, the public servant has committed an offence under this section.

4B.

Taking gratification, in order, by corrupt or illegal means, to influence public servant

Whoever accepts or obtains, or agrees to accept, or attempts to obtain, from any person, for himself or for any other person, any gratification whatever as a motive or reward for inducing, by corrupt or illegal means, any public servant, whether named or otherwise, to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Government or the State Legislature or with any local authority, Corporation or corporate body referred to in clause (c) of section 2 or with any public servant, whether named or otherwise, shall be punishable with imprisonment for a term which shall be not less than one year but which may extend to five years and shall also be liable to fine.

4C.

Taking gratification, for exercise of personal influence with public servant.?

Whoever accepts or obtains or agrees to accept or attempts to obtain, from any person, for himself or for any other person, any gratification whatever, as a motive or reward for inducing, by the exercise of personal influence, any public servant whether named or otherwise to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Government or the State Legislature or with any local authority, Corporation or corporate body referred to in clause (c) of section 2 or with any public servant, whether named or otherwise, shall be punishable with imprisonment for a term which shall be not less than one year but which may extend to five years and shall also be liable to fine.

4D.

Punishment for abetment by public servant of offences defined in section 4-B or 4-C.?

Whoever, being a public servant, in respect of whom either of the offences defined in section 4-B or section 4-C is committed, abets the offence, whether or not that offence is committed in consequence of that abetment, shall be punishable with imprisonment for a term which shall be not less than one year but which may extend to five years and shall also be liable to fine.

4E.

Public servant obtaining valuable thing, without consideration from person concerned in proceeding, or business transacted by such public servant.?

Whoever, being a public servant, accepts or obtains or agrees to accept or attempts to obtain for himself, or for any other person, any valuable thing without consideration, or for a consideration which he knows to be inadequate, from any person whom he knows to have been, or to be, or to be likely to be concerned in any proceeding or business transacted or about to be transacted by such public servant, or having any connection with the official functions of himself or of any public servant to whom he is subordinate, or from any person whom he knows to be interested in or related to the person so concerned, shall be punishable with imprisonment for a term which shall be not less than one year but which may extend to five years and shall also be liable to fine.

4F.

Punishment for abetment of offences defined in section 4-A or 4-E.?

Whoever abets any offence punishable under section 4-A or section 4-E, whether or not that offence is committed in consequence of that abetment, shall be punishable with imprisonment for a term which shall be not less than one year but which may extend to five years and shall also be liable to fine.

4G.

Habitual committing of offence under sections 4-B, 4-C and section 4-F.?

Whoever habitually commits?

(a)

an offence punishable under section 4-B or section: 4-C ; or

(b)

an offence punishable under section 4-F, shall be punishable with imprisonment for a term which shall be not less than two years but which may extend to seven years and shall also be liable to fine.

4H.

Public servant knowingly authorizing payment in respect of contracts for execution of a work or supply of goods when the work done or goods supplied is not in accordance with the contract.?

Whoever, being a public servant competent to authorize payment on behalf of the Government or other public authority in respect of any contract for the supply of any goods or services or the execution of any work, authorizes such payment, knowingly,?

(a)

in the case of a contract for supply of goods and services, that the contractor has supplied goods or services which are less in quantity than, or inferior in quality to those he contracted to supply or which are, in any manner, whatever, not in accordance with the contract; or

(b)

in the case of contract for execution of any work, that the contractor has used materials, which are less in quantity than, or inferior in quality to those he, contracted to use, or which are, in any manner whatever, not in accordance with the contract, shall in the absence of lawful excuse the burden of proving which shall be on him, be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

Explanations :?In this section ?public authority? means?

(a)

a corporation established by or under a Central or State Act ;

(b)

a Government company as defined in section 617 of the Companies Act, 1956 ; and

(c)

a local authority.

5.

Criminal misconduct

(1)

A public servant is said to commit the offence of Criminal misconduct?

(a)

if he habitually accepts or obtains or agrees to accept or attempts to obtain from any person for himself or for any other person, any gratification (other than legal remuneration) as a motive or reward such as is mentioned in section 161 of the State Ranbir Penal Code, Samvat 1989; or

(b)

if he habitually accepts or obtains or agrees to accept or attempts to obtain for himself or for any other person, any valuable thing without consideration or for a consideration which he knows to be inadequate, from any person whom he knows to have been, or to be, or to be likely to be concerned in any proceedings or business transacted or about to be transacted by him, or having any connection with the official functions of himself or of any public servant to whom he is subordinate, or from any person whom he knows to be interested in or related to the persons so concerned; or

(c)

if he dishonestly or fraudulently misappropriates or otherwise converts for his own use any property entrusted to him or under his control as a public servant or allows any other person so to do; or

(d)

if he, by corrupt or illegal means or by otherwise abusing his position as public servant obtains for himself or for any other person any valuable thing or pecuniary advantage; or

(e)

if he or any person on his behalf is in possession or has, at any time during the period of his office, been in possession, for which the public servant cannot satisfactorily account, of pecuniary resources or property disproportionate to his known sources of income.

Explanation :?For the purposes of this section, ?known sources of income? means income received from any lawful source when such receipt has been intimated in accordance with the provisions of any law, rules or orders for the time being applicable to a public servant?.

(1A)

Notwithstanding anything contained in sub-section (1), a member of medical or para-medical staff of the Sher-i-Kashmir Institute of Medical Sciences, Srinagar shall be deemed to have committed the offence of criminal misconduct if he resorts to private practice in any form or manner. The Government shall be competent to notify any other Institutes or College for purposes of this section.

(2)

any public servant who commits an offence of criminal misconduct as referred to in clauses (a), (b) and (e) of subsection (1), shall be punishable with imprisonment for a term which shall not be less than 2 years but which may extend to seven years and shall also be liable to fine and if he commits criminal misconduct as referred to in clauses (c) and (d) of sub-section (1) shall be punishable and imprisonment for a term which shall not be less than one year but which may extend to five years and shall also be liable to fine.

(2-A) Whoever abets or aids in the commission of criminal misconduct under sub-section (1-A) or allows his premises or Nursing Home to be used for private practices in contravention of the said sub-section shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine which may extend up to rupees ten thousand:

Provided that the Sher-i-Kashmir Institute of Medical Sciences, Srinagar shall publish the names and particulars of its medical and para-medical staff annually in at least two local dailies

(3)

Whoever attempts to commit an offence referred to in clause (c) of sub-section (1) shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

(4)

Where a sentence of fine is imposed under the provisions of this Act, the Court in fixing the amount of fine shall take into consideration the amount or the value of the property, if any, which the accused person has obtained by committing the offence or where the conviction is for an offence referred to in clause (e) of sub-section (1), the pecuniary resources or property referred to in that clause for which the accused person is unable to account satisfactorily.

(5)

The provisions of this section shall be in addition to and not in derogation of, any other law for the time being in force, and nothing contained herein shall exempt any public servant from any proceeding which might, apart from this section, be instituted against him.

6.

Previous sanction necessary for prosecution

(1)

No court shall take cognizance of an offence punishable under the provisions of this Act, alleged to have been committed by a public servant except with the previous sanction?

(a)

in the case of a person who is employed in connection with the affairs of the State and is not removable from his office save by or with the sanction of the Government;

(b)

in the case of any other person, of the authority competent to remove him from his office.

Explanation. ? Where for any reason whatsoever any doubt arises whether the previous sanction as required under sub-section (1) should be given by the Government or any other authority, such sanction shall be given by the Government or authority which would have been competent to remove the public servant from his office at the time when the offence was alleged to have been committed;

(c)

in the case of person who is or has been a member of the Council of Ministers other than the Chief Minister, of the Governor on the advice of the Chief Minister;

(d)

in the case of person who is or has been a Chief Minister, of the Governor;

(e)

in the case of a person who is or has been a member of either House of the State Legislature, of the Speaker of the Legislative Assembly or the Chairman of the Legislative Council as the case may be.

(2)

Where for any reason whatsoever any doubt arises whether the previous sanction as required under sub-section (1) should be given by the Government or any other authority, such sanction shall be given by the Government or authority which would have been competent to remove the public servant from his office at the time when the offence was alleged to have been committed;

(3)

Notwithstanding anything contained in the Code of Criminal Procedure, Samvat 1989,-

(a)

no finding, sentence or order passed by a Special Judge shall be reserved or altered by a court in appeal, confirmation or revision on the ground of any error, omission or irregularities in, the sanction required under sub-section (1), unless in the opinion of that court, a failure of justice has in fact been occasioned thereby;

(b)

no court shall stay the proceedings under this Act on the ground of any error, omission or irregularity in the sanction granted by the authority, unless it is satisfied that such error, omission or irregularity has resulted in a failure of justice;

(c)

no court shall stay the proceedings under this Act on any other ground and no court shall exercise the powers of revision in relation to any interlocutory order passed in any enquiry, trial, appeal or other proceedings.

(4)

In determining under sub-section (3) whether any error, omission or irregularity in, such sanction has occasioned or resulted in a failure of justice, the court shall have regard to the fact whether the objection could and should have been raised at any earlier stage in the proceedings.

Explanation: - For the purposes of this section,-

(a)

error includes competency of the authority to grant sanction;

(b)

a sanction required for prosecution includes reference to any requirement that the prosecution shall be at the instance of a specified authority or with the sanction of a specified person or any requirement of a similar nature.

6A.

Particulars in a charge in relation to an offence under section 5(1) (c)

Notwithstanding anything contained in the Code of Criminal Procedure, Samvat 1989, when an accused is charged with an offence under clause (c) of sub-section (1) of section 5, it shall be sufficient to describe in the charge the property in respect of which the offence is alleged to have been committed and the dates between which the offence is alleged to have been committed without specifying particular items or exact dates and the charge so framed shall be deemed to be a charge of an offence within the meaning of section 234 of the Code:

Provided that the time included between the first and last of such dates shall not exceed one year.

7.

Accused person to be competent witness

Any person charged with an offence punishable under the provisions of this Act, shall be a competent witness for the defence and may give evidence on oath in disproof of the charges made against him or any person charged together with him at the same trial:

Provided that?

(a)

he shall not be called as a witness except on his own request;

(b)

his failure to give evidence shall not be made the subject of any comment by the prosecution or give rise to any presumption against himself or any person charged together with him at the same trial;

(c)

he shall not be asked, and if asked shall not be required to answer, any question tending to show that he has committed or been convicted of any offence other than the offence with which he is charged, or is of bad character, unless?

(i)

the proof that he has committed or been convicted of such offence is admissible in evidence to show that he is guilty of the offence with which he is charged, or

(ii)

he has personally or by his pleader asked questions of any witness for the prosecution with a view to establish his own good character, or has given evidence of his good character, or the nature of conduct of the defence is such as to involve imputations on the character of the prosecutor or of any witness for the prosecution, or

(iii)

he has given evidence against any other person charged with the same offence.

7A.

The Code of Criminal Procedure, Samvat 1989 to apply subject to certain modification

The provisions of the Code of Criminal Procedure, Samvat 1989, shall in their application to any proceeding in relation to an offence punishable under the provisions of this Act, have effect as if,?

(a)

sub-section (8) of section 251-A had been substituted by the following, namely:?

"(8) The accused shall then be required to give in writing within such time as the Magistrate may allow a list of persons, if any, whom he proposes to examine as his witnesses and of the documents, if any, on which he proposes to rely and shall then be called upon his defence and produces evidence and if the accused puts in any written statement, the Magistrate shall file it with record:

Provided that in case the accused does not disclose the name of the witnesses for fear of tempering with, he may not disclose the names in which case he will be bound to produce the witnesses on his own responsibility on the next date of hearing without the assistance of the Court and will not claim any further adjournment on this count."

(b)

in sub-section (1-a) of section 344, after the second proviso, the following proviso had been inserted, namely:-

"Provided also that the proceeding shall not be adjourned or postponed merely on the ground that application under section 435 has been made by a party to the proceeding".

(c)

in sub-section (1) of section 435 before the Explanation, the following proviso had been inserted, namely: ?

"Provided that where the powers under this sub-section are exercised by a Court on an application made by a party to such proceeding, the Court shall not ordinarily call for the record of the proceeding, ?

(a)

without giving the other party an opportunity of showing cause why the record shall not be called for; or

(b)

if it is satisfied that an examination of the record of the proceeding may be made from the certified copies thereof; and in any case the proceedings, before the inferior court shall not be stayed except for reasons to be recorded in writing.

(d)

In sub-section (1) of section 497, after second proviso the following proviso shall be inserted, namely :?

"Provided also that no person accused of an offence under Prevention of Corruption Act, Samvat 2006, shall be released on bail unless an opportunity of being heard is provided to the Public Prosecutor to oppose the bail application."

8.

Statement by bribe-giver not to subject him to prosecution

Notwithstanding anything contained in any law for the time being in force a statement made by a person in any proceeding against a public servant for an offence under section 4-A and section 4-E of this Act, or under sub-section (2) or sub-section (3) of section 5 of this Act, that he offered or agreed to offer any gratification (other than legal remuneration) or any valuable thing to the public servant, shall not subject such person to a prosecution under section 4-F of this Act.

8A.

Superior officers of Police to exercise powers of officer-in-charge of a Police Station

Notwithstanding anything contained in the Code of Criminal Procedure, Samvat 1989 for the purposes of this Act, any officer of the Vigilance Organisation of and above the rank of Sub-Inspector of Police shall, subject to the provisions of this Act, exercise any of the powers of the officer-in-charge of a Police Station anywhere in the State and when exercising such powers shall be deemed to be an officer-in-charge of the Police Station within the limits of which he is exercising such powers.

8B.

Powers of the investigating officers

(1)

If an officer (not below the rank of Superintendent of Police) of the Vigilance Organisation, investigating an offence committed under this Act, has reason to believe that any property in relation to which an investigation is being conducted has been acquired by resorting to such acts of omission and commission which constitute an offence of 'criminal misconduct' as defined under section 5, he shall, with the prior approval in writing of the Commissioner of the organisation, make an order seizing such property and, where it is not practicable to seize such property, make an order of attachment directing that such property shall not be transferred or otherwise dealt with, except with the prior permission of the officer making such order or of the Designated Authority before whom the properties seized or attached are produced and a copy of such order shall be served on the person concerned:

Provided that the Investigating Officer may, at any stage of investigation after registration of F.I.R. in respect of any case under the Act where he has reason to believe that such property is likely to be transferred or otherwise dealt with to defeat the prosecution of the case direct, with the prior approval of the Vigilance Commissioner, that such property shall not be transferred or dealt with for such period, not exceeding ninety days, as may be specified in the order except with the prior approval of the Designated Authority.

Explanation. For purposes of this section attachment, shall include temporarily assuming the custody, possession and /or control of such property.

(2)

The Investigating Officer shall inform the Designated Authority, within forty-eight hours, of the seizure or attachment of such property together with a report of the circumstances occasioning the seizure or attachment of such property, as the case may be.

(3)

It shall be open to the Designated Authority before whom the seized or attached properties are produced either to confirm or revoke the order of seizure or attachment so issued within thirty days:

Provided that an opportunity of being heard is afforded to the Investigating Officer and the person whose property is being attached or seized before making any order under this sub-section:

Provided further that till disposal of the case Designated Authority shall ensure the safety and protection of such property.

(4)

In the case of immovable property attached by the Investigating Officer, it shall be deemed to have been produced before the Designated Authority, when the Investigating Officer notifies his report and places it at the disposal of the Designated Authority.

(5)

Any persons aggrieved by an order under the proviso to sub-section (1) may apply to the Designated Authority for grant of permission to transfer or otherwise deal with such property.

(6)

The Designated Authority may either grant, or refuse to grant, the permission to the applicant.

(7)

The Designated Authority, acting under the provisions of this Act, shall have all the powers of a civil court required for making a full and fair enquiry into the matter before it.

8C.

Appeal against the order of Designated Authority

(1)

Any person aggrieved by an order made by the Designated Authority under sub-section (3) or sub-section (5) of section 8-B may prefer an appeal, within one month from the date of receipt of the order, to the Special Judge (Anti Corruption) (hereinafter referred to as Special Court) and the Special Court may either confirm the order of attachment of property or seizure so made or revoke such order and release the property or pass such order as it may deem just and proper within a period of sixty days.

(2)

Where any property is seized or attached under section 8-B and the Special Court is satisfied about such seizure or attachment, it may order forfeiture of such property, whether or not the person from whose possession it is seized or attached is prosecuted in the Special Court for an offence under this Act.

(3)

It shall be competent for the Special Court to make an order in respect of property seized or attached,-

(a)
directing it to be sold if it is a perishable property and the provisions of section 525 of the Code of Criminal Procedure, Samvat 1989 shall, as nearly as may be practicable, apply to the net proceeds of such sale;

(b)
nominating any officer of the Government, in the case of any other property, to perform the function of the Administrator of such property subject to such conditions as may be specified by the Special Court.

8D.

Issue of show cause notice before forfeiture of the property

No order under sub-section (2) of section 8-C shall be made by the Special Court-

(a)
unless the person holding or in possession of such property is given a notice in writing informing him of the grounds on which it is proposed to forfeit such property and such person is given an opportunity of making a representation in writing within such reasonable time as may be specified in the notice against the grounds of forfeiture and is also given a reasonable opportunity of being heard in the matter;

(b)
if the person holding or in possession of such property establishes that he is a bona fide transferee of such property for value without knowing that such property has been so acquired.

8E.

Appeal

(1)
Any person aggrieved by order of the Supreme Court under section 8-C may within one month from the date of receipt of such order, appeal to the High Court.

(2)
Where any order under section 8-C is modified or annulled by the High Court or where in a prosecution instituted for the contravention of the provisions of this Act, the person against whom an order of the special court has been made is acquitted, such property shall be returned to him and in either case if it is not possible for any reason to return the forfeited property, such person shall be paid the price as per prevailing market rate therefor as if the property had been sold to the Government with reasonable interest calculated from the date of seizure of the property and such price shall be determined in the manner prescribed.

8F.

Order of forfeiture not to interfere with other punishments

The order of forfeiture made under this Act by the Special Court, shall not prevent the infliction of any other punishment to which the person affected thereby is liable under this Act.

9.

Inspection of bank accounts

(1)
The Government may, by general or special order, authorise any Police Officer of and above the rank of Deputy Superintendent of Police or any officer of the Vigilance Organisation to inspect any account with a bank or a company in the State of a person against whom an offence under this Act is being investigated and such bank or company shall provide all facilities for inspection thereof and supply a copy of the account, if so required by such officer:

Provided that such officer shall not disclose any particulars contained in any such account except in the performance of his official duty or giving evidence before a Court.

(2)
If any such officer discloses any particulars contained in any such account otherwise than in accordance with the proviso to subsection (1), he shall be punished with imprisonment which may extend to six months and shall also be liable to fine, provided that no prosecution shall be instituted under this sub-section except with the previous sanction of the Government.

9A.

Report of the Vigilance Organisation

It shall be the duty of the Vigilance Organisation to submit half yearly to the Government a report as to the work done by

it and the Government on receipt of such report, shall cause a copy thereof to be laid before the Legislature.

10.

Establishment of Vigilance Organisation

(1)

The Government may, by notification in the Government Gazette, establish an organisation for investigation of offence under this Act under the name of "Vigilance Organisation".

(2)

The Organisation shall consist of a Vigilance Commissioner and such other officers and staff subordinate to him as the Government may from time to time think fit to appoint.

(3)

The qualifications of officers (other than the Director) shall be such as prescribed by the Government by rules made under this Act.

(4)

The Director and the officers and staff subordinate to him shall hold office for such term and on such conditions as the Government may from time to time determine.

11.

Superintendence and the administration of the Vigilance Organisation

(1)

The superintendence of the Vigilance Organisation in so far as it relates to investigation of offences alleged to have been committed under the Prevention of Corruption Act, Samvat 2006, shall vest in the Commission.

(2)

Save as otherwise provided in sub-section (1), the superintendence of the said Organization in all other matters shall vest in the Government.

(3)

The administration of the Vigilance Organization shall best in the Director who shall exercise in respect of that Organization such of the powers exercisable by a Director-General of Police in respect of the police force as the Government may specify in this behalf.

11A.

Terms and conditions of service of Director

The Director shall notwithstanding anything to the contrary contained in the rules relating to his conditions of service, continue to hold office for a period of not less than two years from the date on which he assumes office.

11B.

Appointment for posts of Superintendent of Police and above, extension and curtailment of their tenure, etc.

(1)

The Committee referred to in Section 22 of the Jammu and Kashmir State Vigilance Commission Act, 2011 shall, after consulting the Director, recommend officers for appointment to the posts of the level of Superintendent of Police and above and also recommend the extension or curtailment of the tenure of such officers.

(2)

On receipt of the recommendation under sub-section (1), the Government shall pass such orders as it thinks fit to give effect to the said recommendation.

12.

Conferment of additional functions on Vigilance Commissioner

(1)

The Government may by notification, confer on the Vigilance Commissioner such additional functions in relation to eradication of corruption as may be specified in the notification.

(2)

Where any additional functions are conferred on the Vigilance Commissioner, he shall exercise the same powers and discharge the same functions in respect of the said functions as he would in the case of any investigation under the Act and the provisions of this Act shall apply accordingly.

13.

Construction of references to Anti-Corruption Organisation in other laws, orders etc.

Any reference in any other law, order, rule or notification in force in the State immediately before the commencement of the Jammu and Kashmir Prevention of Corruption Laws (Amendment) Ordinance, 1983 (II of 1983) to the Anti-Corruption Organisation shall unless the context otherwise requires, be construed as reference to the Vigilance Organisation.

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